

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ANDREW S. DORIS,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No. 514151/2021

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER DESARY M. RODRIGUEZ, Shield Number 20995, POLICE OFFICER “JOHN DOE No. 1” (Actual Name Unknown, intended to be the Police Officer who was the partner with Defendant P.O. Desary M. Rodriguez on June 11, 2018 when the Plaintiff was arrested), POLICE OFFICER “JOHN DOE No. 2” (Actual Name Unknown, intended to be one of the Police Officers involved in the arrest and use of excessive force against the Plaintiff who signed Shield No. 5397 on the Central Booking Property Voucher Form), “JOHN DOE” Nos. 3 to 7” (Actual Names Unknown, intended to be the Police Officers who responded to the scene of the Plaintiff’s Arrest on June 11, 2018 on Hawthorne Street, Brooklyn, New York),

Defendants.

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The Plaintiff, Andrew S. Doris, by his undersigned attorney, Matthew A. Kaufman, Esq.,
does state and say as and for his Complaint:

FIRST CAUSE OF ACTION

1. The Plaintiff, Andrew S. Doris is a resident of Kings County, City and State of New York.
2. The Plaintiff, Andrew S. Doris at all times material hereto, is a person of African-American descent with dark skin.
3. Defendant City of New York [hereinafter referred to as “City”]:
 - a. At all times material hereto is a Municipal Corporation, duly formed and created pursuant to the laws and statutes of the State of New York.

- b. At all times material hereto, Defendant City, by its agents, servants and employees, as well as by Defendant New York City Police Department [hereinafter “NYPD”] was responsible for the training and instruction of individuals employed by the NYPD.
 - c. Defendant Police Officer Desary M. Rodriguez, at all times material hereto, is a Police Officer in the employ of Defendants City and/or NYPD and was assigned shield number 20995 and assigned to the 71st Precinct [hereinafter referred to as “Rodriguez”].
- 4. At all times material herein, Defendants Police Officers John Doe No. “1” (Actual Name Unknown), is intended to be the Police Officer who was the partner of Defendant Police Officer Rodriguez on June 11, 2018 when the Plaintiff was arrested, stopped and detained on Hawthorne Street between Flatbush Avenue and Bedford Avenue in the County of Kings, City and State of New York.
- 5. At all times material herein, Defendant Police Officer “John Doe No. 2” (Actual Name Unknown), is intended to be one of the Police Officers involved in the arrest and use of excessive force against the Plaintiff on June 11, 2018 from the 71st Precinct and bearing Shield No. 5397 at the time as signed on the Central Booking Prisoner’s Property Voucher Form on “6/11/18”.
- 6. At all times material herein, Defendant Police Officers “John Doe” Nos. 3 to 7” (Actual Names Unknown) are intended to be the Police Officers who responded to the scene of the Plaintiff’s Arrest on June 11, 2018 on Hawthorne Street, Brooklyn, New York

7. Each and every act of Defendants alleged herein was done by Defendants, through their employees, servants and/or agents, under color and authority of the laws, statutes, ordinances, customs and usages of the State of New York, the United States of America, and under their offices with the City of New York.
8. At all times material hereto, the Plaintiff, Andrew S. Doris resided in the County of Kings, City and State of New York.
9. On June 11, 2018, the Plaintiff had parked an automobile which he had borrowed from his mother on Hawthorne Street between Flatbush Avenue and Bedford Avenue in the County of Kings, City and State of New York.
10. After parking the vehicle, Mr. Doris began to exit the automobile when Defendants Police Officers Rodriguez and John Doe No. "1" stopped a vehicle they were operating in the street immediately behind Mr. Doris on Hawthorne Street between Flatbush Avenue and Bedford Avenue in the County of Kings, City and State of New York.
11. Defendants Police Officers exited their vehicle and approached and stopped him without any probable cause.
12. After parking the vehicle, Mr. Doris began to exit the automobile when Defendants Police Officers Rodriguez and John Doe No. "1" approached and stopped him without any reasonable cause.
13. Defendants Police Officers Rodriguez and John Doe No. "1" told Mr. Doris that he allegedly committed a traffic violation by not signaling that he was turning onto Hawthorne Street.

14. Defendants Police Officers Rodriguez and John Doe No. "1" told Mr. Doris that he turned onto Bedford Avenue without signaling.
15. While Mr. Doris was outside his vehicle, he was grabbed from behind by Defendant Police Officer John Doe No. "1" who yelled for Mr. Doris to put his hands behind his back, and began to force the Plaintiff's hands behind his back.
16. While he was being handcuffed Mr. Doris asked Defendants Police Officers:
"What am I being detained for? For what?"
17. Rather than providing any justification for arresting and handcuffing Mr. Doris, Defendants Police Officers Rodriguez and John Doe No. "1" immediately threw Mr. Doris onto the ground telling him to get on his back.
18. Defendants Police Officers Rodriguez and John Doe No. "1" continued to restrain and keep Mr. Doris on the ground.
19. Defendants Police Officers Rodriguez and John Doe No. "1" used unnecessary and unreasonable force under the attendant circumstances.
20. Defendants Police Officers Rodriguez and John Doe No. "1" removed Mr. Doris from the ground.
21. Defendants Police Officers Rodriguez and John Doe No. "1" placed Mr. Doris under arrest on Hawthorne Street.
22. Defendants Police Officers Rodriguez and John Doe No. "1" placed Mr. Doris under arrest on Hawthorne Street.

23. A second police vehicle arrived at the location containing Defendants Police Officers John Doe Nos. "3" and "4" and parked their behind the vehicle operated by Defendants Rodriguez and John Doe No. "1."
24. Defendants Police Officers John Does Nos. "3" and "4" brought the handcuffed Mr. Doris to their vehicle and placed him inside their vehicle.
25. A third police vehicle arrived at the location on Hawthorne Street containing Defendants Police Officer John Doe Nos. "5" and "6" and parked behind the vehicle operated by Defendants Police Officers John Doe Nos. "3" and "4."
26. Defendants Police Officer John Doe Nos. "5" and "6" aided and assisted Defendants Police Officers John Doe Nos. "5" and "6" assisted Defendants Rodriguez, John Does Nos. "1," "2," "3,"
27. Defendants Polices Officers assisted
28. A fourth police vehicle arrived at the location in the opposition direction on Hawthorne Street and stopped in front of the first vehicle which contained Defendant Police Officers Rodriguez and Police Officer John Doe No. "1."
29. After re-entering the various police cars, the Defendant Police Officers left the scene and brought Mr. Doris back to the 71st Precinct.
30. At the 71st Precinct the Plaintiff was searched and placed in a holding cell.
31. The Plaintiff was thereafter taken to another building in Brooklyn, New York.
32. The Plaintiff was later taken to a Court room where he saw a judge and was advised he was being charged in a Criminal Court Complaint with three crimes and a traffic violation [hereinafter, the "Criminal Court Complaint"].

33. The Criminal Court Complaint contained four charges against the Plaintiff.
34. The Criminal Court Complaint charged the Plaintiff with committing on May 11, 2016 at 2:00 p.m. at 1650 Bedford Avenue in Kings County with:
- “Failure to give appropriate signal to turn”
- in violation of New York Vehicle and Traffic Law Section 1163 (A),
35. The “Criminal Court Complaint” charged the Plaintiff with committing on May 11, 2016 at 2:00 p.m. at 1650 Bedford Avenue in Kings County with:
- “Criminal Possession of a forged instrument in the Third Degree”
- in violation of New York Penal Law Section 170.20.
36. The “Criminal Court Complaint” charged the Plaintiff with committing on May 11, 2016 at 2:00 p.m. at 1650 Bedford Avenue in Kings County with:
- “Obstructing Governmental Administration in the Second Degree”
- in violation of New York Penal Law Section 195.05.
37. The “Criminal Court Complaint” charged the Plaintiff with committing on May 11, 2016 at 2:00 p.m. at 1650 Bedford Avenue in Kings County with
- “Resisting Arrest”
- in violation of New York New York Penal Law Section 205.30.
38. The “Criminal Court Complaint” was verified by Defendant Police Officer Rodriguez under penalty of perjury.
39. The Plaintiff denied committing any of the charges claimed in the “Criminal Court Complaint.

40. The charges contained in the “Criminal Court Complaint” were not true, and contained false information regarding the date, time and location where Mr. Doris was arrested.
41. The Plaintiff was thereafter released by the Court on his own recognizance and told to return on July 13, 2018 to “AP-5.”
42. The charges against Mr. Doris were ultimately adjourned in contemplation of dismissal, and later dismissed.
43. All of the above Defendant Police Officers, by their foregoing acts, intentionally and willfully acted jointly and severally under color of law, statute, ordinance, regulations, customs and practice of the State of New York, to deprive the Plaintiff of his rights, privileges and immunities secured to him by the Constitutions and laws of the United States and New York.
44. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.
45. All of the aforementioned acts deprived the Plaintiff, of the rights and protections guaranteed by the Fourth and Fourteenth Amendments to the Constitution of the United States in violation of 42 U.S.C. § 1983.
46. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.
47. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages,

practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said Department.

48. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
49. The acts complained of deprived the Plaintiff of his rights:
 - a. Not to have excessive force imposed upon him;
 - b. Not to have summary punishment imposed upon him;
 - c. To receive equal protection under the law.
50. The foregoing violations of the Plaintiff's Constitutional rights were undertaken under color of law, statutes, regulations and Constitution.
51. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the individual defendants.

AS AND FOR A SECOND CAUSE OF ACTION

52. The level of force employed by the Defendants was objectively unreasonable and in violation of the Plaintiff's Constitutional rights.

53. As a result of the foregoing, the Plaintiff suffered significant bodily injuries, as well as a deprivation of liberty, invasion of privacy, severe emotional distress, public humiliation and violation of his constitutional rights.
54. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the individual defendants.

AS AND FOR A THIRD CAUSE OF ACTION

55. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
56. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD all under the supervision of ranking officers of said department.
57. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
58. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY and the NYPD were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.

59. The foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY and the NYPD were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein, including, but not limited to the drafting and submission of false and misleading criminal charges against the Plaintiff and persons similarly situated as him, in order to justify the wrongful conduct and behavior by the Defendant Police Officers.
60. As a result of the foregoing customs, policies, usages, practices, procedures and rules of Defendant CITY and NYPD, the Plaintiff was subjected to unlawful and excessive force resulting in permanent and disabling injuries.
61. The individual Defendant Police Officers, collectively and individually, while acting under color of State law, were directly and actively involved in violating the constitutional rights of the Plaintiff.
62. The individual Defendant Police Officers, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate Police Officers, and were directly responsible for the violation of the Plaintiff's Constitutional rights.
63. All of the foregoing acts by Defendant Police Officers deprived the Plaintiff, of Federally protected rights, including, but not limited to, the right:
- a. Not to have excessive force imposed upon him;
 - b. Not to have summary punishment imposed upon him;
 - c. Not to have fabricated Criminal Charges containing false statements of fact made against him; and,

d. To receive equal protection under the law.

64. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, within the jurisdiction of this Court and above the jurisdiction of all inferior Courts of this State as against the individual defendants.

WHEREFORE, Plaintiff respectfully prays this Court for a judgment for in an amount to be determined by this Court:

- A) On the First Cause of Action in an amount to be determined by this Court but within the jurisdiction of this Court and above the jurisdiction of all the lower Courts;
- B) On the Second Cause of Action in an amount to be determined by this Court but within the jurisdiction of this Court and above the jurisdiction of all the lower Courts;
- C) On the Third Cause of Action in an amount to be determined by this Court but within the jurisdiction of this Court and above the jurisdiction of all the lower Courts;
- D) Reasonable attorneys fees pursuant to 42 U.S.C. § 1988 in an amount to be determined by this Court;

as well as costs, fees disbursements.

Dated: New York, N.Y.
October 27, 2021

Yours, etc.,
MATTHEW A. KAUFMAN, ESQ.

s/ Matthew A. Kaufman

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiff,

-against-

Index No. 514151/2021

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Defendants.

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ATTORNEY VERIFICATION

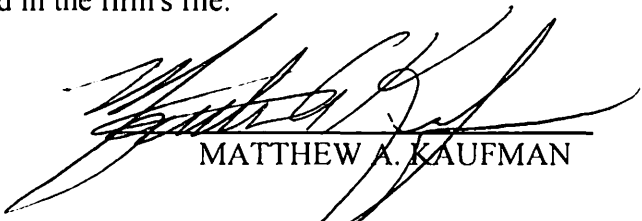
STATE OF NEW YORK, COUNTY OF NEW YORK) ss.:

MATTHEW A. KAUFMAN, ESQ., an attorney duly admitted to practice in the Courts of the

State of New York does state and say under penalty of perjury, pursuant to CPLR 2106, that:

1. I am the attorney of record for the Plaintiff for the within action; I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by my clients because they reside in a different county from where I maintain my office.
2. The grounds of my belief as to all matters not stated upon my own knowledge are based upon communications with my clients, my own investigation and information contained in the firm's file.

Dated: October 27, 2021


MATTHEW A. KAUFMAN

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

ANDREW S. DORIS,

Plaintiff,

-against-
THE CITY OF NEW YORK, *et al.*,

Defendant.

VERIFIED COMPLAINT

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